

IMPORTANT! PLEASE READ THIS AGREEMENT CAREFULLY. YOU ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND CONSENT TO BE BOUND BY THE TERMS OF THIS AGREEMENT. YOUR USE OF THE PLATFORM IS CONDITIONED UPON YOUR ACCEPTANCE OF THIS AGREEMENT. IF YOU DO NOT AGREE WITH ANY PART OF THIS AGREEMENT, YOU MUST NOT USE OR ACCESS THE PLATFORM.

This Vendor Agreement ("**Agreement**") is made and entered into as of the date of electronic acceptance ("**Effective Date**"). This Agreement constitutes a binding agreement between you (the "**you**" or "**your**", or "**Vendor**") and **Hubeco Green Ventures Private Limited** (CIN: U47521TS2024PTC185431) (the "**Company**") incorporated under the Companies Act of 2013, having its registered address at H NO: 8-2-293/F-II/A/20A, Filmnagar, Jubilee Hills, Shaikpet, Hyderabad, Telangana, India, 500033.

1. PURPOSE

The purpose of this Agreement is to establish the terms under which the Company provides you with access to an e-commerce platform named '*Hubeco Marketplace*' accessible at (www.hubeco.market) (the "**Platform**") for the listing and sale of eco-friendly building materials and related services. This Agreement aims to ensure that all transactions align with the Company's sustainability standards, outline the rights and obligations of both the Company and the Vendor, and promote a transparent, lawful, and mutually beneficial relationship in the facilitation of sustainable commerce.

2. ELECTRONIC RECORD AND EXECUTION

- 2.1. You understand and agree that this document is an electronic record in terms of the Information Technology Act, 2000, and rules there under as applicable and the amended provisions pertaining to electronic records in various statutes as amended by the Information Technology Act, 2000. This electronic record is generated by a computer system and does not require any physical or digital signatures.
- 2.2. Additionally, this document is published in accordance with the provisions of Rule 3 (1) of the Information Technology (Intermediaries guidelines) Rules, 2011 that require publishing the rules and regulations, Privacy Policy, and Terms of Sale for access or usage of Platform.
- 2.3. You acknowledge that by impliedly or expressly accepting the terms outlined in this Agreement, you also accept and agree to be bound by all of our other policies applicable to you including but not limited to [Privacy Policy](#) and [Terms of Sale](#), as amended, from time to time. **If you do not agree with anything provided herein, please do not use or access our Platform.**

3. DEFINITIONS AND INTERPRETATION

- 3.1. **Definitions:** In this Agreement, the following words, expressions, and abbreviations shall have the following meanings unless the context otherwise requires:
 - 3.1.1. "**Applicable Law**" shall mean any statute, law, regulation, ordinance, rule, judgement, notification, rule of common law, Order, decree, bye-law, government approval, directive, guideline, requirement or other governmental restriction, or any similar form of decision of, or determination by, or any interpretation, policy or administration, having the force of law of any of the foregoing, by any Authority having jurisdiction, whether in effect as of the Effective Date or thereafter;
 - 3.1.2. "**Business Days**" means a day, not being a Saturday or Sunday or a public holiday, on which banks are open for business in India in the context of a payment being made to or from a scheduled commercial bank in a place other than India, in such other place;
 - 3.1.3. "**Buyer**" or "**Buyers**" shall mean an individual or entity engaging in the purchase of goods and/or services available on the Platform. The term specifically refers to the buyer, the individual, or entity initiating a transaction by selecting and acquiring products or services being offered by the Vendors through the Platform. For the avoidance of doubt, the term "Buyer" encompasses both B2B (Business-to-Business) and B2C (Business-to-Consumer) buyers;
 - 3.1.4. "**Intellectual Property**" shall mean any and all trademarks and services marks (whether or not registered), copyrights, design rights (whether or not registered), moral rights, patents (whether or not registered), performance rights, database rights and other new media rights, names, logos and codes, publicity rights, and any and all other intellectual property and proprietary rights of any nature whatsoever that subsist, or may subsist, or be capable of registration, or any part thereof and which exist, or may exist, in any jurisdiction, and the term **Intellectual Property Rights** shall accordingly be construed as rights to **Intellectual Property**;
 - 3.1.5. "**Objectionable Content**" means information or content that (a) belongs to another person and to which the user does not have any right; (b) is grossly harmful, harassing, blasphemous defamatory, obscene, pornographic, paedophilic, libellous, invasive of another's privacy, hateful, or racially, ethnically objectionable, disparaging, relating or encouraging money laundering or gambling, or otherwise unlawful in any manner whatever; (c) harms minors in any way; (d) infringes any patent, trademark, copyright or other proprietary rights; (e) violates any law for the time being in force; (f) deceives or misleads the addressee about the origin of such messages or communicates any information which is grossly offensive or menacing in nature; (g) impersonates another person; (h) contains software viruses or any other computer code, files or programs designed to interrupt, destroy or limit the functionality of any computer resource; (i) threatens the unity, integrity, defence, security or sovereignty of India, friendly relations with foreign states, or public order or causes incitement to the commission of any cognisable offence or prevents investigation of any offence or is insulting any other nation.
 - 3.1.6. "**Product Information**" means, with respect to each of the Products, the following (including to the extent expressly required under the Company Policies): (i) description; (ii) Stock Keeping Unit (SKU) and other identifying information (like images/videos) as the Company may reasonably request; (iii) information regarding in-stock status and availability, shipping limitations or requirements, and Shipment Information (in each case, in accordance with any categorisations prescribed by the Company from time to time); (iv) categorisation within each Company product category as prescribed from time to time; (v) digitized image that accurately depicts only the Product and does not include any additional logos, text or other markings; (vi) listing price including tiered listing price; (vii) any text, disclaimers, warning, notices, labels, or other Content required by Applicable Law to be displayed in connection with the offer, merchandising, advertising or sale of the Product; (ix) brand; (x) model; (xi) product dimension; (xii) weight; (xiii) a delimited list of technical specifications; (xiv) any other identifying information as the Company may reasonably request for accessories related to the Product that are available with the Product; (xv) minimum order quantity; and (xvi) any other information requested by the Company or required by Applicable Law.
 - 3.1.7. "**Product(s)**" shall mean and include all items, including eco-friendly products having green certification by various agencies, to be provided and offered by the Vendor on the Platform, as well as any additional services requested by the Platform in writing, subject to the terms of this Agreement.
 - 3.1.8. "**Return, Refund and Cancellation Policy**" shall refer to the policy available [here](#).
- 3.2. **Interpretation:**
 - 3.2.1. Heading and bold typeface are only for convenience and shall be ignored for the purpose of interpretation.
 - 3.2.2. Other terms may be defined elsewhere in the text of this Agreement and, unless otherwise indicated, shall have such meaning throughout this Agreement.
 - 3.2.3. References to this Agreement shall be deemed to include any amendments or modifications to this Agreement, as the case may be.
 - 3.2.4. Unless the context of this Agreement otherwise requires:
 - 3.2.4.1. the terms "hereof", "herein", "hereby", "hereto" and derivative or similar words refer to this entire Agreement or specified Clauses of this Agreement, as the case may be;
 - 3.2.4.2. references to a particular section, clause, paragraph, sub-paragraph or schedule, exhibit or annexure shall be a reference to that section, clause, paragraph, sub-paragraph or schedule, exhibit or annexure in or to this Agreement;
 - 3.2.4.3. reference to any legislation or law or to any provision thereof shall include references to any such law as it may, after the date hereof, from time to time, be amended, supplemented or re-enacted, and any reference to statutory provision shall include any subordinate legislation made from time to time under that provision;
 - 3.2.4.4. references in the singular shall include references in the plural and vice versa references to one gender shall include references to other genders; and

4. VENDOR REPRESENTATIONS AND WARRANTIES

4.1. You hereby represent and warrant to the Company that:

- 4.1.1. Subject to [Clause 1 of the Terms of Sale](#), you have the legal capacity to enter into a binding contract under the Indian Contract Act, of 1872, and other Applicable Laws and you are not ‘*incompetent to contract*’ within the meaning of Indian Contract Act, 1872, including minors, un-discharged solvents, etc. The Company reserves the right to terminate your registration and deny access to the Platform if it becomes aware or discovers that you are under the age of 18 years.
- 4.1.2. You (if registered as a business entity) affirm that you are duly authorized to carry on the business and hold all the requisite registrations, certifications, permissions, authorities, approvals, and sanctions to conduct your business and to enter into the present Agreement.
- 4.1.3. You are fully equipped to provide the Products agreed upon in this Agreement to the satisfaction of the Company.
- 4.1.4. You have all necessary licenses, permits, certifications, and authorizations for listing and selling on the Platform as required by all Applicable Laws and regulations pursuant to this Agreement.
- 4.1.5. Your listed Products do not infringe upon the Intellectual Property, trade secret, or other proprietary rights or rights of publicity or privacy rights of third parties.
- 4.1.6. You have the full right and authority to digitally execute and accept the terms of this Agreement.
- 4.1.7. there are no proceedings pending against you, which may have a material adverse effect on your ability to perform and meet the obligations under this Agreement.
- 4.1.8. You hold the requisite government-issued identifiers, tax compliance credentials, and licenses for your operations and for the purpose of this Agreement.
- 4.1.9. the execution, delivery, and performance of this Agreement by you have been duly authorized by all requisite corporate action;
- 4.1.10. this Agreement constitutes your legal, valid, and binding obligation, enforceable against you in accordance with the terms hereof; and the execution, delivery, and performance of this Agreement by you will not violate or conflict with any other agreement or instrument to which you are a party.

5. PROVISION OF ONLINE MARKETPLACE

- 5.1. You acknowledge that subject to the terms of this Agreement, in reliance of your representations and warranties, and on your digital acceptance of this Agreement, we hereby permit you to list your Products for sale on the Platform at the listing price determined by you or any person authorized by you.
- 5.2. You also understand that we shall carry out the required processing for the purpose of listing the Products on the Platform. We may, in our absolute and sole discretion, disallow the listing of specific Products which do not align with our Platform business objectives or pursuant to the Applicable Law and you agree to accept and comply with our decision in this regard unconditionally.
- 5.3. We shall provide you with the dedicated dashboard and necessary login IDs and passwords required for the purpose of listing your Products on the Platform (“**Vendor Module**”). In the event that you cannot list the Products by yourself, we may, for an agreed fee, secure the necessary details from you and on the basis of the information provided by you, list your Products on the Platform. Further, where the support is provided by us to list your Products, you shall check and ensure that the information listed by us is accurate. We shall not bear any responsibility for any incorrect information about the Products presented on the Platform.
- 5.4. You agree and acknowledge that you shall be solely responsible for the Product Information, related content, your own information, and your offer and sale of the Products on the Platform. You shall also be responsible for updating the information about the Products or the information about yourself as and when required, especially regarding the availability of the Products or otherwise.
- 5.5. You further acknowledge that the Company will undertake no liability in the event there is any discrepancy or mismatch in Product Information with the actual Product that may lead to a diluted Buyer experience which can lead to unnecessary returns and refunds impacting your performance ratings in the future as well as the final payment remittance to you.
- 5.6. Any change in the listing price of a Product should be communicated to the Company via such means as may be agreed. The Company shall not accept the information relating to the change in listing price through any other mode of communication other than the agreed means.
- 5.7. You undertake that any information or presentation of the materials, Products (including their packaging) or any details placed or requested to be placed by the Vendor on the Platform (i) shall not contain any Objectionable Content or any other content that is not expressly permitted by the Company to be listed on the Platform; and (ii) shall not infringe upon the Intellectual Property Rights of any third party.
- 5.8. In order to improve the Buyer’s experience, the Company may implement a mechanism to rate and provide feedback regarding the Vendor and the presentation of the Products on the Platform and such information shall be available publicly on the Platform.
- 5.9. You understand and agree that the Company shall not bear any responsibility for any adverse comment or rating of the Products on the Platform.
- 5.10. You further agree that any breach of the provisions of this Agreement, [Terms of Sale](#), or any standard policies provided by the Company to you may lead to the suspension of the listing of your Products from the Platform in the absolute discretion of the Company.

6. ROLES AND RESPONSIBILITIES OF THE PLATFORM

- 6.1. The Vendor understands that the Platform is only a facilitating medium that can be utilized by you to reach a larger Buyer base to sell Products. The Platform serves as a medium for independent transactions and communication between the Vendor and Buyers and therefore, all commercial and contractual terms, encompassing price, shipping costs, payment methods, delivery details, and warranties, are proposed by the Vendor and exclusively agreed upon between the Vendor and the Buyers. Any contract for the sale of any products or services shall be a strictly bipartite contract between the Vendor and the Buyer. The Platform maintains control and involvement in the negotiation or acceptance of these terms at its discretion, reserving the right to determine or provide guidance on such terms.
- 6.2. **Resolving disputes between Vendors and Buyers:**
 - 6.2.1. In the event of any conflict arising between a Vendor and a Buyer, the Company will facilitate resolution through a structured procedure. Upon notification from the involved parties, the Company’s support staff will promptly investigate the conflict, meticulously reviewing the terms and conditions stipulated on the Platform and outlined in agreements with the Vendor and the Buyer. Acting as a mediator, the Company will strive to foster constructive dialogue between the parties with the goal of reaching a mutually agreeable resolution that aligns with Platform policies and contractual obligations.
 - 6.2.2. If mediation efforts prove successful, the Company will assist in implementing the agreed-upon solution. In cases where resolution cannot be achieved through mediation, the Company may propose alternative courses of action or escalate the matter as needed. Throughout the process, both the Vendor and the Buyer commit to cooperating fully with the Company and adhering to any decisions or resolutions reached in accordance with Platform terms and contractual agreements.
 - 6.2.3. In instances where disputes persist unresolved despite mediation and alternative efforts, the Company retains the authority to make a final determination based on the information gathered during the investigation.
 - 6.2.4. The Company shall not be held responsible for non-performance or breaches of contracts between the Vendor and the Buyers. However, in the event a conflict arises between the Vendor and Buyers, the Company shall play a facilitating role by providing pertinent information to both parties. It is important to note that the Platform’s involvement is strictly as a facilitator, and there is no obligation to actively participate or be bound by any proceedings. The primary aim of this facilitation shall be to assist the parties in achieving an amicable resolution.
 - 6.2.5. The Vendor shall be responsible for verifying the bona fides of any Buyer and the Company is not responsible for guaranteeing Buyer specifics, such as legal title, creditworthiness, or identity.

7. VENDOR ONBOARDING

- 7.1. **Account Registration:** The Vendor shall furnish their details and information as requested on the Platform from time to time, including, but not limited to, the following information to register as a Vendor:
- 7.1.1. **Basic Information:** complete name, address, email, mobile number, government-issued identifiers, digital signature, and tax compliance credentials. registered address (principal geographic address of its headquarters and all branches);
 - 7.1.2. **Transaction Data:** bank account holder details, branch name, IFSC, cancelled cheque, etc;
 - 7.1.3. **Onboarding Form:** a detailed structured form requiring basic information, product specifications, types, features, relevant certifications and accreditations (including quality and green certifications), annual turnover and market presence (geographical and market reach), payment terms, and any other information as required by the Company;
 - 7.1.4. **Know Your Customer (KYC) process:** Once all the information is provided by the Vendor, information will be reviewed by the Company. Upon approval of the KYC information by the Company, the Vendor is provided with the dedicated Vendor Module to list their Products;
 - 7.1.5. **Product Onboarding:** Once the Vendor Module is assigned, the Vendor may begin onboarding their Products onto the Platform by furnishing the following information-
 - 7.1.5.1. *Product Description:* This includes providing detailed Product Information (*defined in Clause 3.1.6*) along with uploading images, brochures and other relevant details as requested by the Company from time to time. Additionally, the Vendor shall be required to provide details of green certification details applicable to their Product(s) such as certification number, validity, and the concerned authority that issued such certification.
 - 7.1.5.2. *Product Pricing Information:* The Vendors are also required to provide the base price of each Product, along with the discounted price and GST rate. The Vendor is encouraged to specify the Unit of Measure (UOM).
 - 7.1.5.3. *Return, Refund and Cancellation:* As part of the Product onboarding process, the Vendor is required to furnish detailed information regarding the return and cancellation terms for each Product listed on the Platform. Specifically, the Vendor must clearly indicate the following details for each Product: (i) whether the Product is returnable or not; (ii) the specific timeframe within which Buyers are permitted to return the Product or cancel their orders; and/or (iii) any other details as requested by the Company from time to time. It is important to note that while the Vendor provides the return and cancellation details for each Product, any refund processes related to returns or cancellations will be governed strictly by the Platform's established [Refund Policy](#).
 - 7.1.6. **Platform Fee:** Vendor hereby agrees and acknowledges that subject to Clause 13 of this Agreement, the Platform shall charge a predetermined fee ("**Platform Fee**") from the Vendor. This Platform Fee is agreed upon in advance between the Vendor and the Company. During the Vendor onboarding process, the predetermined Platform Fee will be clearly indicated. The Vendor will be required to review and confirm the Platform Fee details as part of completing the onboarding process. Certain Vendors may be onboarded under a partner pricing model. For these Vendors, the specified Vendor price will be clearly indicated during the onboarding process. The Vendor is required to review and formally confirm the Vendor price as a condition of completing the onboarding process.
 - 7.1.7. Upon successful onboarding, the Vendor can thereafter manage their Products and associated activities through their Vendor Module on the Platform.
 - 7.1.8. In the event that the information pertaining to the Products or otherwise provided is untrue, inaccurate, outdated, or incomplete, or consists of any discrepancies, the Vendor acknowledges that the Company reserves the right to suspend, terminate or indefinitely block the Vendor's Account on the Platform.
 - 7.1.9. **Ongoing Compliance:** The Vendor must ensure that all information and documentation submitted during the KYC process and product onboarding remain accurate and up-to-date, and must promptly update any changes in information and/or documentation.
- 7.2. **Vendor's Platform Usage Responsibilities:** Pursuant to [Clause 2 of the Terms of Sale](#), the Vendor agrees to adhere to the policies and procedures for listing the Products on the Platform, including but not limited to the following:
- 7.2.1. The Vendor shall be responsible for ensuring the confidentiality of their information, including login credentials and password of their Account and Vendor Module.
 - 7.2.2. The Vendor shall empower and authorise the Company to address Buyer grievances on their behalf in respect of Products sold by the Vendor. This authority shall include performing incidental acts that are specifically required to be carried out and perform the specific authority granted herein. The Vendor shall also provide consent to populate their details, including, but not limited to, the Vendor address, provided by the Vendor at the time of registration, on the Products listed by the Vendor on the Platform.
- 7.3. **Listings on the Platform:** To ensure the integrity of listings on the Platform, the Vendor agrees to the following guidelines:
- 7.3.1. The listings by the Vendor on the Platform may only include text descriptions, graphics, pictures, or videos that describe the Product for sale;
 - 7.3.2. All items must be listed in an appropriate category and subcategory on the Platform. All listed items must be kept in stock for the successful fulfilment of sales;
 - 7.3.3. The listing description of the Product must not be misleading and must describe the actual state of the Product. If the Product description does not match the actual condition of the Product, the Vendor agrees to refund any amount that the Vendor may have received from the Company; and
 - 7.3.4. The Vendor shall not list a single Product in multiple quantities across various categories on the Platform. The Platform may delete multiple listings of the same product listed in various categories.
- 7.4. **Payments and Taxes:** The Vendor shall be responsible for clearly displaying the final listing prices of their Products to Buyers, including a clear breakdown of pricing components including without limitation the base price, discounted price, if applicable and the applicable taxes such as GST. Further, the Vendor agrees that all payments on the Platform shall be securely made via the Company's designated payment gateway partner. The Company will facilitate payments to Vendors subject to Clause 13 of this Agreement.

8. SPECIFICATIONS AND QUALITY STANDARDS

- 8.1. The Vendor hereby agrees and acknowledges that the Vendor is obligated to adhere to the quality standards and specifications provided for their respective Products, as well as any green certifications provided. These standards must align with those outlined in the product page on the Platform. The Vendor warrants that all Products will be of merchantable quality, fit for their intended purpose, and free from defects in material and workmanship.
- 8.2. The Vendor acknowledges that all Products offered on the Platform must comply with the applicable environmental and technical standards, including, but not limited to, green certifications where required. Further, the Vendor is responsible for ensuring the timely renewal of all required quality certifications for the Products offered on the Platform by the Vendor. The Company's system will issue automated alerts to the Vendor one (1) month prior to the certification's expiry, prompting the Vendor to upload the renewed certification. Additionally, the Vendor agrees to provide copies of renewed certifications to the Company promptly upon receipt of the updated documents. Failure to renew applicable certifications in a timely manner may result in a breach of this Agreement, at the discretion of the Company.
- 8.3. In cases where a Vendor does not possess a green certification but instead holds internationally recognized declarations, such as a Life Cycle Assessment (LCA) or Environmental Product Declaration (EPD), the Vendor shall maintain the accuracy and validity of these declarations throughout the term of this Agreement. The absence of time-bound certifications shall not constitute a breach provided that the Vendor has submitted valid LCAs, EPDs, or other equivalent environmental declarations in lieu of green certifications.
- 8.4. The Company reserves the right to request verification of any environmental credentials, certifications, or declarations at any time. Vendors are required to comply with such requests promptly to ensure ongoing compliance with this Agreement.
- 8.5. The Vendor acknowledges and agrees that they are solely responsible for all actions, conduct, and decisions of any third-party authority that issues green certifications for the Products listed on the Platform. The Company does not verify, authenticate, or validate the certifications or the credibility of the certifying authorities. Any reliance on such third-party authorities is at the Vendor's own discretion and risk. The Vendor assumes full responsibility for ensuring the validity and accuracy of the certifications provided. The Company shall bear no liability for any consequences arising from the actions, decisions, or misrepresentations of the certification issuing authorities.

- 8.6. The Vendor acknowledges that maintaining accurate and valid green certifications or equivalent environmental declarations is essential for compliance with this Agreement. In case of any inaccuracies or misrepresentations regarding these certifications or declarations made by Vendors on their Products listed on this Platform, Vendors shall indemnify and hold harmless both Buyers and Company from any claims arising from such inaccuracies or misrepresentations. This includes legal fees incurred in defending against such claims. The Company reserves all rights to suspend or remove any Product listings until such inaccuracies are resolved satisfactorily.
- 8.7. The Vendor agrees and acknowledges that they may conduct their own quality verification upon receiving the Products and the Company shall not be responsible for performing these quality measures. The Vendor acknowledges that they shall adhere to all claims and ensure compliance.
- 8.8. The Vendor understands and acknowledges that maintaining current and valid certifications is essential to meeting the quality standards required by the Company and its Buyers and that the Vendor is responsible for conducting thorough quality checks before dispatching Products to Buyers on the Platform. The parameters for these quality checks, if any, will be defined by the Platform and must be strictly followed by the Vendor. By accepting and agreeing to the terms of this Agreement, the Vendor acknowledges and agrees to comply with these quality control measures to ensure the consistent delivery of Products meeting the specified standards.
- 8.9. The Vendor acknowledges that the Company acts solely as an intermediary facilitating the sale of products between the Vendor and the Buyer through the Platform. The Company does not manufacture, inspect, or control the quality of the products provided by the Vendor.
- 8.10. The Vendor agrees to maintain robust quality assurance processes and comply with all applicable industry standards and regulations. The Vendor must promptly address and resolve any quality issues reported by Buyers. The Company shall not be liable for any claims, damages, losses, or expenses arising from or related to the quality of the Products provided by the Vendor. This includes but is not limited to, any instances where Products are found to be substandard, defective, or not as described.
- 8.11. In the event of any Buyer complaints regarding Product quality, the Vendor is responsible for handling and resolving such complaints. The Company may facilitate communication between the Buyer and the Vendor but will not be held accountable for the resolution of such complaints.
- 8.12. The Vendor understands and agrees that the Company makes no representations or warranties, express or implied, regarding the quality, safety, or legality of the Products listed by the Vendor on the Platform. All warranties, if any, related to the Products are provided solely by the Vendor.
- 8.13. The Vendor agrees to allow the Company, upon reasonable notice, to inspect the Vendor's facilities and quality control processes to ensure compliance with the terms of this Agreement. However, the Vendor understands that such inspections do not create any liability or responsibility on the part of the Company for the quality of the Products.
- 8.14. The Vendor agrees to indemnify and hold the Company harmless from any claims, damages, losses, or expenses arising from or related to the quality of the Products listed on the Platform. This includes legal fees and costs associated with defending against such claims.

9. VENDOR'S OBLIGATIONS AND RESPONSIBILITIES

- 9.1. **Failure to Meet Obligations:** In the event that the Vendor fails to fulfill their obligations and meet the satisfaction criteria of the Buyers and the Platform, the Vendor will be notified in writing by the Company detailing the specific defaults. The Vendor shall have 30 days from the date of receipt of the notice to rectify the identified defaults and fulfill their obligations. Failure to do so may be deemed as a breach of this Agreement and the Company reserves the right to terminate and/or remove the Vendor's Account on the Platform.
- 9.2. **Out-of-Scope Work:** The Vendor shall not proceed with any out-of-scope work without obtaining prior written approval from the Company. Any unauthorized work undertaken by the Vendor may result in penalties.
- 9.3. **Direct Order Acceptance:** The Vendor expressly agrees not to accept orders directly from Buyers once connected through the Platform. The Vendor shall not engage with Buyers independently without prior notification to the Platform. All orders, without exception, must be processed exclusively through the Platform's designated website.
- 9.4. **Change in pricing of Products:** The Vendor has the flexibility to change the pricing of their Products at any time through the Vendor Module provided by the Company. Any changes made by the Vendor will be automatically reflected online for Buyers. It is the Vendor's responsibility to ensure that the updated prices are accurate and comply with any Applicable Laws and regulations. The Company will not be liable for any discrepancies or issues arising from the Vendor's pricing changes.
- 9.5. **Maintenance of adequate stock level:** The Vendor understands and acknowledges that they are responsible for maintaining adequate stock levels and ensuring that their production capacities are aligned with the volume of orders received from the Platform. The Vendor must ensure that their supply chain and logistics operations are fully compliant with the delivery timelines specified during the onboarding of their Products onto the Platform. This includes but is not limited to, timely procurement of raw materials, efficient production processes, and reliable transportation arrangements.
- 9.6. **Delay by the Vendor:** In the event that there is a delay in the delivery of the Product on account of reasons attributable to the Vendor such as unresponsiveness of the Vendor or the unavailability of sufficient stock, the Platform reserves the right to impose penalties, cancel orders, or apply any other appropriate punitive measures.
- 9.7. **Financial Transparency and Organizational Changes:** The Vendor shall keep its books, records, and accounts with sufficient detail and precision to clearly reflect its transactions and the use or disposition of its resources or assets. The Vendor agrees that the Company has the right to audit the transactions related to the Vendor's execution of its obligations under this Agreement at any time and upon reasonable notice. If for any cause or reason, the Vendor proposes to transfer control of the Vendor to a third party or a third party assumes control of the Vendor, the Vendor must notify the Company in writing of the change at least thirty (30) days in advance of such change, or within three (3) business days of obtaining knowledge of the change.
- 9.8. **Timely Grievance:** The Vendor hereby agrees to promptly address any grievances concerning its Products, ensuring resolution within a period not exceeding seven (7) days from the date of receipt of the complaint. The Company, through its support staff, will endeavour to resolve conflicts in the best interest of both the Vendor and the Buyer, in compliance with the terms and conditions mentioned on the Platform and in the Agreement with the Vendor and the Buyer. The Vendor agrees to cooperate fully with the Company's support staff to achieve swift and satisfactory resolutions to any issues that arise.

10. COMPLIANCE WITH LAWS

- 10.1. **Tax and Regulatory Compliance by Vendor:**
- 10.1.1. The Vendor shall ensure full compliance with the provisions of Integrated Goods and Services Tax (IGST), Central Goods and Services Tax (CGST), and Union Territory Goods and Services Tax (UTGST) or State Goods and Services Tax (SGST) in respect of the Products supplied by the Vendor. It is the Vendor's responsibility to charge appropriate taxes on the supplies affected and remittance of the same to the Government. The Platform shall not be responsible for any deficiency and/or omission on your part. Further, you shall be required to provide the corresponding Harmonised System Nomenclature (HSN) code number for every Product listing. You shall also be required to provide GSTIN, without which the Platform will not be able to raise an invoice for you. In the event that you do not provide your GSTIN number, transactions on your Account will be blocked and orders will not be processed on your Vendor Module. In the event you provide any Input Service Distributor (ISD) Registration Number, the Platform will issue an invoice to the ISD, a GST registration number as furnished by you. It shall be your responsibility to undertake the necessary compliance required in respect of the said ISD registration number.
- 10.1.2. Additionally, the Vendor shall take appropriate transit insurance for their Products supplied to ensure coverage against any potential loss or damage during transit. The Company shall not be liable for any loss or damage to the Products during transit.
- 10.1.3. Further, the Vendor shall obtain all necessary waybills, e-way bills, and any other governmental permissions required to transport Products from one state to another. The Vendor shall ensure compliance with all applicable laws and regulations related to the transportation of goods.

- 10.1.4. In the event of any non-compliance with the above-mentioned requirements or failure to meet these operational requirements, including but not limited to failure to provide GSTIN, obtain necessary transit insurance, or secure required waybills and permissions, it may be considered as a breach of the Agreement and the Platform reserves the right to take appropriate corrective actions, including but not limited to, block transactions on the Vendor's Account and halt order processing on the Vendor Module, suspension or termination of the Vendor's Account on the Platform. The Vendor shall be solely responsible for any legal or financial repercussions arising from such non-compliance.
- 10.2. **Compliances by Vendor under The Consumer Protection (E-commerce) Rules, 2020 as amended and if substituted from time to time:**
- 10.2.1. The Vendor should not mislead and misguide the Buyer by posting false reviews for their Product's quality and features pretending to be a Buyer on the Platform;
- 10.2.2. If in case the Vendor's Products are defective, deficient, adulterated, or spurious, or if the Products are not of the features as advertised or as agreed to or delivered late from the stated delivery schedule, they shall provide benefits of refund, return/ replacement, exchange, warranty and guarantee, withdrawal and cancellation for the Products listed on the Platform;
- 10.2.3. The Products offered on the Platform should be consistent with the actual quality and features of the Products as shown on the Platform;
- 10.2.4. The Vendor shall ensure full compliance with all Applicable Laws in displaying accurate product/service details on the Platform, including but not limited to total pricing with a breakdown of all charges and taxes, manufacturing/packaging and expiry dates, and the country of origin to facilitate informed Buyer decisions. The Vendor must provide complete importer details for any imported products, and guarantee the authenticity and genuineness of all listed Products. Additionally, the Vendor is responsible for providing shipment and delivery updates, as well as clearly stating and honouring any applicable guarantees or warranties associated with their Products; and
- 10.2.5. The Vendor shall provide updates on the shipment and delivery of Products that are shipped from the Vendor's premises.
- 10.3. **Compliance with Anti-Money Laundering, Sanctions, and Regulatory Requirements:**
- 10.3.1. Vendor will fully comply with all applicable laws and regulations including but not limited to anti-money laundering (including know your customer and customer due diligence) and sanctions (economic and trade) enforced by the United Nations, the Republic of India, U.S. Department of Treasury's Office of Foreign Assets Control (OFAC). Neither the Company nor the Vendor will engage in a transaction pursuant to this Agreement that will cause the other party to violate such laws and regulations.
- 10.3.2. The Vendor shall ensure that no Products are sourced or used in the manufacturing or in the provision of services that originate wholly or in part, from any of the prohibited countries stated in the 'OFAC Regulations and Other Applicable Sanctions Regulations.

11. ORDER, SALE, AND FULFILMENT

- 11.1. **Placing Orders:**
- 11.1.1. The Vendor agrees and understands that as and when the Buyer places an order and makes the payment on the Platform, it constitutes a confirmed purchase. Upon receipt of the order and payment, the confirmed order details will be sent to the Vendor for processing.
- 11.1.2. In the case of online orders, the total amount of the order should include shipment charges and applicable taxes and such costs will be detailed in the order summary before finalisation. For offline orders, the Buyer requests a quote from the Vendor, and once the Vendor sends the quote with payment terms, the Buyer must approve the quote before making the payment. The Vendor is then responsible for fulfilling the order as per the agreed terms.
- 11.2. **Fulfilment of Orders:**
- 11.2.1. The Vendor agrees that the fulfilment of orders placed on the Platform is their sole responsibility. The Platform acts merely as an aggregator, providing a service to Vendors and Buyers, ensuring the security of payment, and assisting in the delivery of such orders.
- 11.2.2. The Vendor agrees and understands that the Platform shall not be liable for undertaking any insurance(s) for Products sold by any Vendor on the Platform.
- 11.2.3. The Platform shall not be responsible regarding the accuracy of Product specifications upon dispatch and delivery. Any guarantee or warranty associated with the Products is the Vendor's sole responsibility and must be provided directly to the Buyers.
- 11.2.4. Company shall not be liable for any claims, damages, losses, or expenses arising from or related to the fulfilment of orders by the Vendor. All terms, including price, shipping costs, delivery details, and warranties, are proposed by the Vendor and agreed upon by the related parties.
- 11.3. **Coupons and Discounts:**
- 11.3.1. As a Vendor on the Platform, you have the option to offer promotional discounts and coupon codes to Buyers during the checkout process. These discounts and codes are intended to incentivize frequent purchases and are governed by specific terms and conditions that include details on usage, limitations, applicability, restrictions, and validity. The Buyers may also benefit from bulk discount pricing directly set by Vendors. Please note that the Company reserves the right to update these terms periodically based on factors such as usage patterns, regulatory requirements, and other considerations. Any changes to these terms will be communicated to Vendors and Buyers without prior notice.
- 11.4. **Terms for Sale:**
- 11.4.1. When Buyers place an order to purchase Product(s) on the Platform, the Company will send a system-generated email confirming the receipt of the order and providing order details. This order confirmation email acknowledges that the Vendor has received the order. Vendors will update the status of such orders through their Vendor Modules, and system-generated emails from the Company will be sent to the Buyer.
- 11.4.2. Another email will be sent to the Buyer upon dispatch. If an order is dispatched in multiple packages, separate dispatch confirmation emails may be sent for each package.
- 11.4.3. In the event that the Vendor and the Buyer need to communicate off the Platform with each other for purposes including but not limited to sharing technical documents or files (*see Clause 11.6.2 of this Agreement*), they may do so adhering to the requirement of keeping the Company informed about the nature of their off-Platform communications and ensure compliance with the terms outlined in Clause 11.6 of this Agreement. Please note that this off-Platform communication shall not take place unless the Buyer makes the partial/advance payment as the case may be.
- 11.4.4. The Vendor understands that the prices of the Products displayed on the Platform shall include applicable taxes. It shall be the Vendor's responsibility to incorporate the required taxes and any other charges when listing the Product(s). The Company disclaims any liability for the accuracy or completeness of tax calculations and charges applied by the Vendor.
- 11.4.5. The Company does not make any representation or warranty as to specifics of the Products proposed to be sold or offered to be sold or purchased on the Platform. The Company does not implicitly or explicitly support or endorse the sale or purchase of any Product on the Platform. Further, we accept no liability for any errors or omissions, whether on behalf of the Vendor or other third parties.
- 11.4.6. The Company is not responsible for any non-performance or breach of duty related to the transactions concerning order placement and delivery entered into between Buyers and Vendors. The Company is not liable for any failure by Buyers or Vendors to fulfill their respective duties or responsibilities under such transactions. The Company cannot and does not guarantee that the concerned Buyers and/or Vendors will perform any transaction concluded on the Platform.
- 11.4.7. The Company does not at any point of time during any transaction between Buyer and Vendor, come into or take possession of any of the Products or services offered by the Vendor nor does the Company at any point gain title to or have any rights or claims over the Products or services offered by the Vendor to the Buyer.
- 11.4.8. The Vendor shall be solely responsible for ensuring the manufacturing and availability of sufficient stock of the Products to enable the delivery of the Products within the time specified.

- 11.4.9. The Vendor acknowledges and agrees that any non-availability or delay in the manufacturing and shipment of the Products may negatively impact the Buyer experience which, in turn, can negatively impact the Vendor's ratings and consequently, the business generated by the Vendor on the Platform. If there are more than ten instances of inability to deliver the Products on time, the Company may proceed to ensure the delisting of the Vendor from the Platform.
- 11.4.10. The Vendor takes full responsibility for the contents of the Products delivered to the Buyer and agrees that the Company shall not be responsible or liable in any manner whatsoever for such contents.
- 11.4.11. The Vendor agrees that the Company does not provide logistics service providers to facilitate the delivery of orders and Products. The Vendor shall dispatch the Products using only an approved delivery channel that provides appropriate 'proof of dispatch' & 'proof of delivery' (PoDs) documentation. Such PoD documentation relating to delivery should be maintained by a Vendor for a period of 3 (three) years from the date of dispatch. The PoDs should be furnished to the Platform on demand within the time frame as notified from time to time.
- 11.4.12. The Vendor shall ensure that the Products dispatched are of the same specifications ordered and there is no variation whatsoever. The necessary guarantee/warranty, if any, shall be provided by the Vendor to the Buyer. The Vendor shall not include any of its marketing, or promotional materials, any other solicitations or any communications to Buyers including emails confirming orders in the package without prior written approval by the Company.
- 11.4.13. Further, the Vendor shall solely be responsible for undertaking transit insurance for Products sold by the Vendor on the Platform. For the avoidance of doubt, the Platform will not be responsible for undertaking any insurance(s) for Products sold by Vendor on the Platform.
- 11.4.14. The Vendor agrees and acknowledges that the Vendor will be solely responsible for any sale of Products to the Buyer that is not in accordance with the order of the Buyer or the Company Policies. The Vendor further warrants to resolve all Buyer service issues in connection with such sale or delivery of Products.
- 11.4.15. The Vendor undertakes and agrees that it shall not collude with a Buyer or other Vendors or users of the Platform, for drawing benefits from various promotional offers including but not limited to discount or cashback through false or fraudulent transactions. If the Vendor is found involved in any such activity, the Vendor acknowledges and agrees that the Company reserves its right to impose a penalty on the Vendor and recover the money amounting to twice the benefits so drawn or twice the maximum retail price; whichever is higher.
- 11.4.16. In the event of delays by the Vendor to deliver the Products, the Vendor must promptly communicate the delay to the Buyer. If the Buyer agrees to wait, the order will proceed as planned. If the Buyer opts to cancel the order due to the delay, they may do so in accordance with the terms and conditions as may be applicable to such order. The Vendor acknowledges that repeated delays may affect their standing with the Company and could lead to further actions as deemed necessary by the Company.

11.5. **Availability and delays:**

- 11.5.1. The Vendor acknowledges and agrees that the Vendor shall be solely responsible for maintaining the availability of their Products and for providing accurate and up-to-date information regarding the availability of the Products or any other relevant details. It is Vendor's obligation to ensure that such information is promptly uploaded and maintained on their respective Vendor Module when listing Products on the Platform. The Platform shall not be liable for any inaccuracies, omissions, or misrepresentations related to the availability of the Products provided by you.
- 11.5.2. In the event of delays by the Vendor to deliver the Products, the Vendor must promptly communicate the delay to the Buyers. If the Buyers agree to wait, the order will proceed as planned. If they opt to cancel the order due to the delay, they may do so in accordance with the terms and conditions enumerated in our [Delivery & Shipping Policy](#) and the Vendor's [Return and Cancellation](#) policy.
- 11.5.3. The Vendor agrees and acknowledges that in the event that there is a delay in the delivery of the Products on account of reasons attributable to insufficient stock maintained by the Vendor, the Platform reserves the right to impose penalties, cancel orders, or apply any other appropriate punitive measures.

11.6. **Buyer Offline Order Enquiry and Sale:** The Platform allows Buyers to request offline quotes for Products by adding items to their cart and selecting the "Request for Offline Quote" option. Once the request is submitted, it is sent directly to the Vendor. If the Vendor requires clarification on the Buyer's request, the Platform's chat support functionality will be enabled, allowing both parties to communicate and resolve queries related to the quote.

- 11.6.1. All communication regarding the offline quote, including pricing and specifications, must take place within the chat support function until the payment process is completed. During this period, the identities of the Buyer and the Vendor remain anonymous to ensure privacy and security. The chat support is specifically designed to facilitate the procurement process and will not be used for general product inquiries, which should be directed to the designated support email provided on the Platform.
- 11.6.2. If, during the process, certain documents such as CAD drawings or technical files are required by the Vendor but cannot be uploaded or exchanged through the Platform, the Buyer may send these documents outside the Platform. However, this off-Platform exchange of documents is only permitted after the Buyer has made an advance payment or completed a milestone payment as part of the quote process. Until such a point, all document exchanges, including PDFs, should occur within the chat functionality of the Platform. Further, the Vendor acknowledges that any off-Platform document exchanges must include the Platform administrator in all email communications to ensure proper oversight and compliance with the terms of this Agreement.
- 11.6.3. At any point if the Buyer and Vendor choose to communicate off the Platform, in such cases, the Company explicitly disclaims all responsibility for the content, outcomes, and any agreements made during off-Platform communications. Despite off-Platform communication, the Vendor and Buyer must ensure that the Company is kept informed and in the loop regarding the nature and outcomes of such communications. The Vendor and Buyer must ensure that any off-Platform interactions comply with the terms of this Agreement and applicable laws.
- 11.6.4. Additionally, all chats and communications between the Buyer and Vendor will be subject to monitoring by the Platform. Until the transaction is finalized through the Platform, sharing personal or contact information is strictly prohibited.
- 11.6.5. Upon mutual agreement between the Vendor and Buyer regarding Product specifications, pricing, and other terms, the Buyer is required to confirm the order exclusively through the Platform. All offline conversations shall be documented, and the Company shall be kept informed to ensure transparency and proper handling of Buyer inquiries and sales transactions.
- 11.6.6. The Platform acts solely as a facilitator for the communication between Buyers and Vendors. While the Platform provides this chat support functionality, it does not monitor, verify, or endorse the content of these communications. The Company shall not be liable for any issues, misunderstandings, or disputes arising from these direct communications.
- 11.6.7. Failure to comply with the terms outlined in this Clause may result in the Company taking appropriate actions, including but not limited to monitoring and enforcement measures, imposition of account penalties, and pursuit of legal remedies for breaches of these terms in accordance with Clause 25.

12. **INVOICE GENERATION AND PROCESSING**

- 12.1. The Vendor acknowledges and agrees that the Platform facilitates an auto-invoicing system to assist in generating invoices on behalf of the Vendor. The digital signature uploaded by the Vendor during the onboarding process shall be utilized by the Platform for inclusion on automatically generated invoices issued to Buyers for transactions facilitated through the Platform. The Vendor is solely responsible for ensuring the accuracy, legality, and ongoing validity of the uploaded digital signature, and further agrees that the use of this signature on invoices shall carry the same legal effect as a handwritten signature.
- 12.2. The Vendor acknowledges that the auto-generated invoices provided by the Platform will not include an invoice date or invoice number. It is the Vendor's sole responsibility to accurately complete these mandatory fields. Once the Vendor has filled in the required invoice date and invoice number, the completed invoice will be made accessible to the respective Buyer in their Account under the "Orders" section on the Platform.

- 12.3. Further, it is also the Vendor's responsibility to ensure that a printed or digital copy of the invoice is attached to the order at the time of delivery. Despite the Company's assistance, the Vendor will retain full responsibility for the accuracy and completeness of all invoices. Any discrepancies or issues with the invoices that result in liability from taxation authorities will be the Vendor's sole responsibility.
- 12.4. The Vendor acknowledges that in cases where the fulfillment of an order requires an advance or partial payment from the Buyer, the Company shall issue a receipt to the Buyer for any advance or partial payments made on the Platform. This receipt shall acknowledge the payment received but shall not constitute an invoice. Upon receipt of the full payment from the Buyer, it shall be the sole responsibility of the Vendor to ensure that the final invoice generated by the Platform is reflecting the total amount paid. The Vendor must ensure that this final invoice accurately details the whole transaction.
- 12.5. Further, the Vendor understands that they may access and manage invoices through the Vendor Module under the "Invoices" section.
- 12.6. The Vendor agrees to comply with all Applicable Laws, regulations, and tax requirements related to the issuance and management of invoices. The Company shall not be liable for any errors, omissions, or non-compliance by the Vendor in this regard.

13. PAYMENT TERMS

- 13.1. The Vendor agrees and acknowledges that the Company shall charge a predetermined Platform Fee from the Vendor, which may vary based on the Product category, material, and other criteria specified by the Company during the negotiations stage and prior to Vendor onboarding.
- 13.2. The Vendor further agrees and acknowledges that the payment terms including the Platform Fee agreed upon in advance will be reflected during the Vendor onboarding phase via electronic means. This electronic onboarding form will include all agreed-upon payment terms and is created and maintained in accordance with the Information Technology Act, 2000. By agreeing to these terms, the Vendor acknowledges that the electronic records of the payment terms are legally enforceable, valid, and binding.
- 13.3. The Vendor understands that the Vendor shall not be required to submit invoices to the Company, as all payments made by Buyers are processed through the Platform. The Company will retain the agreed-upon Platform Fee from the Buyer's payment and issue an invoice to the Vendor for the Platform Fee amount. This invoice does not require action or clearance from the Vendor, as the Company will automatically deduct the Platform Fee from the total payment before remitting the balance to the Vendor. Any discrepancies regarding the Platform Fee invoice must be raised by the Vendor within seven (7) days from the date the invoice is issued by the Company. Failure to do so will be deemed acceptance of the invoice and the Platform Fee deduction.
- 13.4. The Platform Fee payable to the Company by the Vendor for each successful order shall be calculated as a percentage of the total order value, including applicable taxes and shipping charges and the percentage of Platform Fee shall be calculated and determined between the Company and the Vendor during the negotiations before the onboarding process. For Vendors operating under the partner pricing model, the Platform Fee shall be calculated based on the differential amount between the total order value and the order value determined by the Vendor's established pricing.
- 13.5. The Vendor agrees that the Platform Fee shall be deducted by the Platform from the transaction proceeds before remittance to the Vendor. Payments to Vendors shall be processed as agreed upon between the Company and the Vendor before the onboarding process.
- 13.6. The Company reserves the right to modify or correct any errors or omissions in invoices at any time. If such modifications or corrections are made, the Company will provide the Vendor with a revised invoice. The Vendor agrees to accept such corrections and promptly address any outstanding payments or refunds resulting from these corrections.
- 13.7. **Account Deactivation/Termination:** Subject to [Terms of Sale](#), if a Vendor requests for a closure of the Account or the Company terminates this Agreement, the Company will perform a final settlement of all pending amounts. Any outstanding payments due to the Vendor, including invoices not yet processed, will be settled by the Company within thirty (30) days of Account deactivation or termination, subject to due certification and verification of all relevant details. No further claims for payments or amounts will be entertained after this final settlement.

14. RETURN, REFUND, AND CANCELLATION

- 14.1. Subject to the terms and conditions outlined in our Return, Refund, and Cancellation Policy (*defined above*), the Vendor hereby understands and agrees that the return and cancellation terms for each Product listed on the Platform may vary depending on the specific details provided by the Vendor at the time of onboarding. During the onboarding process, the Vendor is required to submit detailed information regarding the applicable return and cancellation terms as outlined in Clause 7 of this Agreement.
- 14.2. Vendor understands and acknowledges that these return and cancellation terms will be captured via an online onboarding form, which is created and maintained in accordance with the Information Technology Act, 2000 on the Platform. By completing the onboarding process, the Vendor acknowledges and agrees that the terms recorded electronically are legally enforceable, valid, and binding. The Vendor also agrees that these terms, once submitted, will govern all transactions related to the Products listed on the Platform unless otherwise modified by mutual consent, and such modifications are also captured electronically in the same manner.
- 14.3. The Vendor further acknowledges that the Company reserves the right to enforce the return and cancellation policies as provided by the Vendor, but the Company shall not be held liable for any discrepancies, misunderstandings, or disputes arising from the Vendor's provided information. It is the sole responsibility of the Vendor to ensure that the information regarding returns and cancellations is accurate, up-to-date, and reflective of the Vendor's policies.
- 14.4. The Vendor understands that any changes or updates to the return and cancellation terms must be communicated in writing to the Company and submitted through the Platform's electronic systems. Such changes will only take effect once they have been electronically captured and acknowledged by both parties.
- 14.5. The Vendor confirms that all return and cancellation terms provided during onboarding comply with applicable laws and regulations. The Vendor is responsible for ensuring that their policies do not violate any consumer protection laws, and the Company reserves the right to require modifications if any terms are found to be non-compliant.
- 14.6. The Vendor understands that if the Buyer's refund is not processed by the Vendor within a specified timeframe, we shall issue a refund directly to the Buyer upon the Vendor's confirmation that the Vendor has received the returned Product in its original state and is not defective. Any refund issued by the Company directly to the Buyer shall be offset against any payments owed to the Company.

15. INTELLECTUAL PROPERTY RIGHTS

- 15.1. Intellectual property rights and any proprietary materials utilized or created by the Company in relation to the Platform are subject to the provisions outlined in [Clause 10 of the Terms of Sale](#).

16. TERM AND TERMINATION

- 16.1. **Term**
- 16.1.1. This Agreement shall commence upon the Effective Date and, unless terminated earlier, shall continue in effect until terminated as provided herein (the "**Term**"). The Company reserves the right to update this Agreement as needed (hereinafter referred to as "**Term**").
- 16.2. **Termination by either party:**
- 16.2.1. Either the Company or the Vendor may terminate this Agreement with a minimum of thirty (30) days prior written notice to the other party, which will become effective upon the expiry of the notice period. The Company may, in good faith, agree to waive or reduce the notice period from thirty (30) days if an alternative is found to the satisfaction of the Company. Both the Company and the Vendor are free to waive off notice periods only when specifically, and clearly indicated in writing and mutually agreed upon between them.
- 16.3. **Termination without notice:**
- 16.3.1. The Company may terminate this Agreement in its entirety, without any notice if the Vendor breaches or commits a default of any obligation which default is incapable of cure. If the default is capable of cure but has not been cured within fifteen (15) Business Days after receipt of notice of such default, the Company has a right to terminate the Agreement. A material breach under this Agreement may take place upon:

- 16.3.1.1. Failure by the Vendor to deliver Products of the specified quality and specification or consistent delays in delivery of Products.
- 16.3.1.2. Attempting or directly engaging in the sale of any Products to the Buyer without involving the Platform.
- 16.3.1.3. Receiving consistently bad reviews from Buyers regarding the quality of Products or materials shipped. Specifically, any review ratings of one (1) star consistently over a period of three (3) months.
- 16.3.1.4. Failure to extend or renew quality certifications and non-compliance with quality standards as mentioned in the product specifications and certificates.
- 16.3.1.5. Any breach of the terms and conditions as outlined in the Agreement.

16.4. Subject to [Clause 21 of Terms of Sale](#), the Company has the right to terminate this Agreement otherwise than on account of the breach, without any prior notice to the Vendor and the termination shall become effective immediately.

16.5. **Consequences of Termination**

- 16.5.1. Upon the termination of this Agreement, both the Company and the Vendor shall be released from all their obligations and liabilities occurring or arising after the date of such termination, except that any termination of this Agreement shall not relieve either party of their delivery and payment obligations for orders which have been already processed on the Platform or any obligations under Clauses 13, 14, 15, 16, 17, 18, and 19 hereof, nor shall any such termination relieve the parties from any liability arising from any breach of this Agreement.
- 16.5.2. Further, upon the termination of this Agreement, each Party shall, within fifteen (15) Business Days of a written request, return and destroy all originals, copies, reproductions and summaries of Confidential Information provided to the other party as Confidential Information or originating from its activities for either party. Furthermore, each party must immediately and permanently cease to use and remove from its place of business and from its Internet Platforms, any Intellectual Property of the other party, including the other party's content, trademarks, and any other identifying characteristics, including any signs, fixtures, materials, stationery, supplies, forms or other articles that display any content, trademarks or any trade dress or other distinctive features that create an impression of continued association between the Company and the Vendor. Each party shall certify to the other party in writing that it has satisfied its obligations under this paragraph.
- 16.5.3. Upon termination of this Agreement, any invoices due to the Vendor will be processed and paid within thirty (30) Business Days after the termination date, contingent upon due certification of the invoices. The certification process will ensure that all goods and services invoiced meet the quality standards and specifications as per the agreement. Any discrepancies found during the certification process may result in adjustments to the payable amounts. The Vendor agrees to provide all necessary documentation to facilitate the certification and payment process.

17. NON-SOLICITATION

- 17.1. The Vendor shall not:
 - 17.1.1. solicit, encourage, induce or attempt to solicit, encourage, or induce any or prospective employees, marketing agents or consultants of the Company to terminate his employment, agency or consultancy with the Company.
 - 17.1.2. Induce or attempt to induce any Buyer to terminate its relationship with the Company or not use the Company's Platform;
 - 17.1.3. Induce any potential Buyer not to establish a relationship with the Company.

18. NON-DISPARAGEMENT

- 18.1. During the Term of this Agreement and at all times thereafter, the Vendor shall not, directly or through any other person, make any public or private statements (whether orally, in writing, via electronic transmission, or otherwise) that disparages, denigrates or maligns any of the Company's respective businesses, products, services, activities, operations, affairs, reputations or prospects; or any of the Company's respective officers, employees, directors, partners, agents, members or shareholders. For purposes of clarification, and not limitation, a statement shall be deemed to disparage, denigrate or malign the other party if such statement could be reasonably construed to adversely affect the opinion that any other person may have or form of such first person.
- 18.2. The foregoing limitations shall not be violated by truthful statements made by the Vendor: (i) to any governmental authority or (ii) which are in response to legal process, required governmental testimony or filings, or administrative or arbitral proceedings (including, without limitation, depositions in connection with such proceedings).

19. NON-CIRCUMVENTION

- 19.1. The Vendor understands and hereby agrees not to directly or indirectly, circumvent, avoid, bypass, obviate, negotiate or enter into any contract with any Buyers registered with the Platform, initially communicated through the Platform, without the prior written consent of the Company. The Vendor acknowledges that any breach of this non-circumvention obligation will result in significant harm to the Company and agrees to indemnify the Company for any losses incurred as a result of such breach. This non-circumvention obligation shall remain in effect during the term of this Agreement and for a period of three (3) years following the termination or expiration of this Agreement.
- 19.2. The Vendor shall not, directly or indirectly, engage, participate, or negotiate in any transaction with a third party introduced or identified by the Company, without the express written consent of the Company. This includes but is not limited to accepting orders, entering into contracts, or engaging in business transactions with such third parties outside of the Platform.
- 19.3. In the event of a breach or threatened breach of this Clause 19, the Company shall be entitled to seek injunctive relief, specific performance, and any other equitable relief, in addition to any other rights or remedies available at law or in equity, to prevent or remedy such breach.

20. RELATIONSHIP BETWEEN THE COMPANY AND THE VENDOR

- 20.1. Notwithstanding any provision herein to the contrary or any course of conduct between the Company and the Vendor, both the Company and the Vendor hereto are independent contractors, and nothing contained in this Agreement or in any services shall be construed to place them in the relationship of partners, principal and agent, employer and employee, or joint-venturers. Each party agrees that it shall have no power or right to bind or obligate the other; neither party shall hold itself out as having such authority. The Vendor will comply with the Platform's policies, dependent upon the type of service provided and as directed by the Company, including but not limited to, any training, training documentation, reading of Standard Operating Procedures, performance assessments, and requirements for departure when the Agreement has expired (or is terminated).

21. INDEMNIFICATION

21.1. Subject to [Clause 25 of the Terms of Sale](#), the Vendor agrees to indemnify and hold harmless, the Company, including its officers, directors, employees, and agents from any claims, losses, damages, liabilities, costs, and expenses, (including reasonable attorney's fees, related to the pet's transportation, (together "Claims").

22. LIMITATION OF LIABILITY

22.1. Pursuant to [Clause 24 of Terms of Sale](#), in no event shall the Company be liable to the Vendor or any party related to the Vendor for any indirect, incidental, consequential, special, exemplary, or punitive damages (including, without limitation, business interruption, loss of business information, loss of data or other such pecuniary loss), whether under a theory of contract, warranty, tort (including negligence), products liability, or otherwise. In no event will the Company's total aggregate and cumulative liability to the Vendor for any and all claims of any kind arising hereunder exceed the amount of the Platform Fee received by the Company from such Vendor.

23. FORCE MAJEURE

23.1. For the purpose of this Agreement, a "**Force Majeure Event**" means anything outside the reasonable control of a party, including fire, explosion, power blackout, earthquake, flood, strike, embargo, labour disputes, civil disorder, riot, act of civil or military authority, act of public enemy, terrorist threat or activity, war (declared or undeclared), unavailability or shortage of materials, act of god, delays in transportation, unforeseen site conditions, acts or omissions of subcontractors, acts or omission of carriers or suppliers, restriction of law, regulation, order or other acts of regulatory or governmental agency(ies), interruption or failure of telecommunication or digital transmission link, internet failure or delay, disruptions in the supply chain of construction materials, significant price fluctuations in raw materials, transport strikes or disruptions, equipment breakdowns, environmental restrictions or disasters (such as landslides or soil contamination), and any other unforeseen events that prevent the procurement, production, or delivery of construction building materials.

23.2. Neither the Company nor the Vendor shall be liable to the other nor shall be deemed in default for any delay, failure in performance, loss or damage due to a Force Majeure Event, provided that such delay, failure, loss or damage:

- 23.2.1. could not have been prevented by commercially reasonable precautions and;
- 23.2.2. cannot reasonably be circumvented by the non-performing party through the use of commercially reasonable alternate sources, work-around plans or other means.

23.3. If the performance of the obligations is delayed or impacted by a Force Majeure Event, the Vendor shall immediately notify the Company of the occurrence of such event and describe its nature in writing with reasonable details.

24. GOVERNING LAW AND JURISDICTION

24.1. This Agreement shall be governed by and construed in accordance with the laws of India without regard to its conflict of law principles. The parties hereby irrevocably submit to the exclusive jurisdiction of the courts located in Hyderabad, Telangana, India, for any legal suit, action, or proceeding arising out of or related to this Agreement. Each Party waives any objection which it may have now or hereafter to the laying of the venue of any such proceeding in such courts and agrees not to plead or claim in any such court that such proceeding has been brought in an inconvenient forum.

25. DISPUTE RESOLUTION

25.1. This Agreement shall be construed in accordance with the applicable laws of Hyderabad, Telangana, India.

25.2. If any dispute or claim arises from or in connection with (i) this Agreement, (ii) [Terms of Sale](#); and/or (iii) your access to or use of our Platform and/or Services, the relevant parties shall resolve the dispute through amicable negotiations but in case the conflict continues the parties will resort for the dispute resolution procedure set out herein.

25.2.1. **Mediation:** In the event that the parties are unable to agree to a mutually agreeable decision and a dispute or difference arises in connection with the interpretation or implementation of this Agreement or Vendor Terms of Sale, the parties agree that they will submit to a binding confidential mediation that will be held in Hyderabad, Telangana, India and in accordance with the applicable laws of India. The mediation shall be conducted in English by a mediator that is mutually agreed upon by the Parties, as far as possible. The costs of the mediation shall be borne equally by all parties. The parties hereby waive any and all right to have this Agreement or Vendor Terms of Sale adjudicated by a court or jury. The mediation proceedings shall be carried out in Hyderabad, Telangana, India. In accordance with the applicable laws of India. The mediator shall issue a final decision within sixty (60) days from the commencement of mediation proceedings.

25.2.2. **Arbitration:** In the event that the mediation fails to resolve the dispute within the sixty (60) day period, the parties agree to submit the dispute to binding arbitration. The arbitration shall be conducted in Hyderabad, Telangana and in accordance with the applicable laws of India. The arbitration shall be conducted in English by a sole arbitrator appointed jointly by the parties, as far as possible. The arbitrator must be independent. The arbitrator must issue a final decision within one (1) month from the commencement of arbitration proceedings. The place of arbitration shall be Hyderabad, Telangana, India. The award of the arbitration proceedings will be final and binding on both parties to this Agreement or [Terms of Sale](#).

26. MISCELLANEOUS

26.1. **Assignment:** The Vendor shall not be entitled to transfer or assign the rights or obligations under this Agreement or any part thereof except with the prior written approval of the Company.

26.2. **Terms of Sale and Privacy Policy:** The Vendor hereby agrees to read this Agreement in conjunction with the [Terms of Sale](#) and [Privacy Policy](#) governing the use of the Platform.

26.3. **Non-exclusivity:** The Company does not mandate that any of the Vendor's Products should be sold exclusively on the Platform. For the sake of clarity, the Company unilaterally waives any obligation on the Vendor to sell exclusively on the Platform. Any written or oral arrangements to the contrary shall stand unilaterally waived.

26.4. **Counterparts:** This Agreement may be executed in any number of counterparts, each of which shall be enforceable against the Vendor actually executing such counterparts, and all of which together shall constitute one instrument.

26.5. **Severability:** To the extent that any provision of this Agreement is found by any court or competent authority to be invalid, unlawful or unenforceable in any jurisdiction, that provision shall be deemed not to be a part of this Agreement, and such finding shall not affect the enforceability of the remainder of this Agreement nor shall it affect the validity, lawfulness or enforceability of that provision in any other jurisdiction.

26.6. **Entire Agreement:** This Agreement sets out the entire understanding of the Company and the Vendor hereto and supersedes all prior negotiations and all prior agreements, written or verbal, and may not be modified except in writing and signed by both the Company and the Vendor.